

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 36-007
Amendments to Title 5 of the Chickasaw Nation Code
(Notice of Intent to Appeal)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, The Chickasaw Tribal Legislature has previously enacted rules and procedures codified at Title 5, Article B, Section 5-102.1 of the Chickasaw Nation Code, and

WHEREAS, The Chickasaw Tribal Legislature desires to amend those rules and procedures.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through; omission without deletion of substance is signified by “***”):

“SECTION 5-201.1

RULE 1: FILING OF CASES AND MOTIONS

A. An action for appeal from a final judgment, decree or order of the District Court shall be commenced by filing an original Notice of Intent to Appeal and Designation of Record on Appeal with the District Court within thirty (30) days from the date a final order is entered by the District Court and served upon all parties. The District Court shall then file copies of all relevant materials compiled in the case with the Supreme Court, including the Transcript. ~~The Supreme Court shall then assign a case number, file the case and send copies of the Notice of Intent to Appeal to the parties.~~ The Petitioner shall have thirty (30) days following the filing of the case **Notice of Intent to Appeal** in order to file an original Petition for Appeal and **four (4)** copies with the Supreme Court. The form for the Notice of Intent to Appeal is attached this Article B as Appendix “A;” **“A”**; the form for the Designation of Record on Appeal is attached as Appendix “B;” **“B”**; the form for the Affidavit of Service is attached as Appendix “C;” **“C”**; the form for the Petition for Appeal is attached as Appendix “D.” **“D”**.

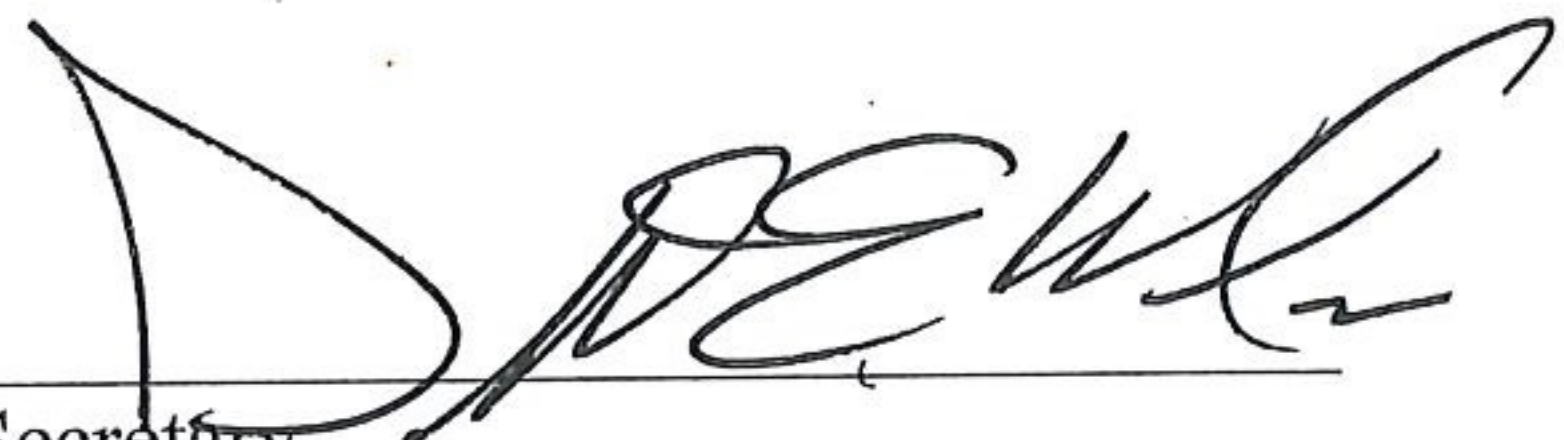
C. Service of documents regarding appeals must be made by personal delivery or by mailing, ~~by certified U.S. Mail; return receipt requested and restricted delivery,~~ on all parties to the original action or by personal delivery. **If such service is accomplished by mailing, then the person making the mailing shall file an Affidavit of Service per Appendix “C”.** ***

D. At the time of filing a Notice of Intent to Appeal and a Designation of Record with the District Court, ~~and serving copies to all parties to the action,~~ the Petitioner shall advance the costs of two hundred fifty dollars (\$250) to be applied toward the cost of preparing the transcript and record and any and all additional costs incurred therefor. **Upon Motion for Waiver, the costs for preparing the transcript and record may be waived by the Supreme Court of the Chickasaw Nation upon a showing of undue hardship by Petitioner. The cost advancement shall be suspended while said motion is pending. If the waiver is denied the cost of two hundred fifty dollars (\$250) shall be paid by Petitioner within 10 days of service of the denial by personal service or within 13 days of service of the denial by mailing as evidenced by the Affidavit of Mailing.** Upon completion of the transcript and record by the Court Clerk, any costs exceeding the two hundred fifty dollars (\$250) shall be paid by the Petitioner upon receipt of a bill from the Court Clerk. If the costs are less than two hundred fifty dollars (\$250), all remaining funds shall be refunded to the Petitioner. The transcript shall be prepared and sent to all parties to the appeal as soon as possible. ~~The costs for preparing the transcript and record may be waived by the Supreme Court of the Chickasaw Nation upon a showing of undue hardship by Petitioner."~~

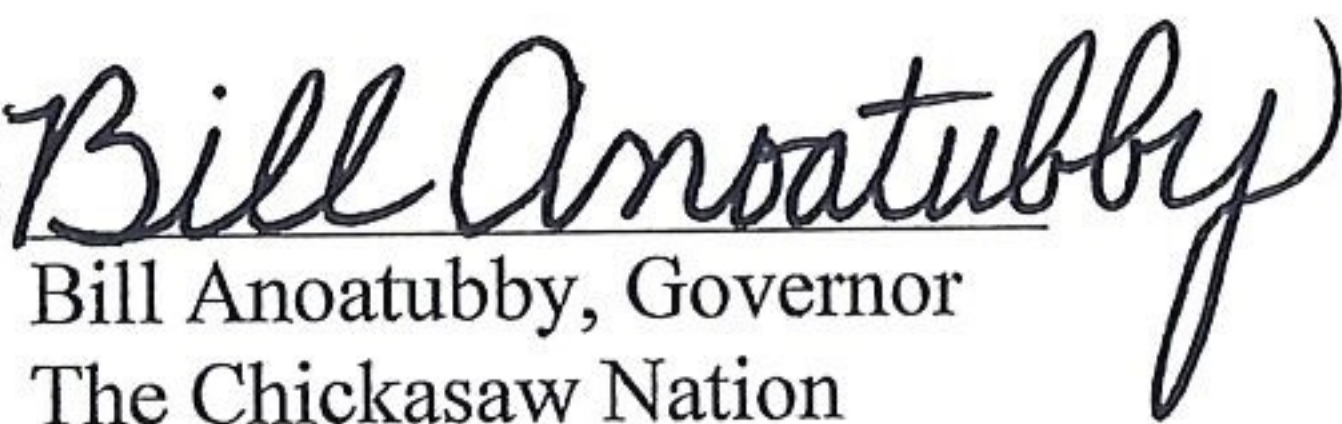
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on August 16, 2019, by a vote of 11 ayes, 0 nays and 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: AUG 19 2019

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Explanation:

This resolution approves and adopts amendments to the above referenced sections in Title 5 of the Chickasaw Nation Code. The intent is to provide clarity for the Notice of Intent to Appeal.

Presented By:

Legislative Committee
Chickasaw Tribal Legislature